Kashly365

Secure Fintech Solutions

TERMS AND CONDITIONS

These Terms and Conditions constitute a legally binding agreement between User/Borrower and **Kashly365** governing your access to and use of the digital lending platform, website, mobile application, and related services (collectively referred to as the "Platform").

By accessing, registering, or using the Platform, you acknowledge that you have read, understood, and agreed to be bound by these Terms, as well as all applicable laws and regulations in India.

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1. Nature and Scope of Services

Kashly365 operates as a technology-enabled platform designed to facilitate access to credit products offered by regulated financial institutions, including Non-Banking Financial Companies (NBFCs) and banks ("Lending Partners"). The Company does not, unless explicitly stated, act as the lender and does not independently sanction or disburse loans.

The Platform enables users to submit loan applications, undergo digital verification processes, and receive loan offers from Lending Partners. All decisions relating to loan approval, loan amount, tenure, interest rate, and disbursement are made solely by the Lending Partners based on their internal policies, risk assessment frameworks, and applicable regulatory guidelines.

The Company's role is limited to providing technology infrastructure, facilitating communication, and ensuring a seamless user experience.

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2. Eligibility and User Representation

Access to the Platform is restricted to individuals who are legally competent to enter into binding contracts under Indian law. By using the Platform, you represent and warrant that all information provided by you is accurate, complete, and up to date.

The Company reserves the right to verify the authenticity of the information provided and may suspend or terminate access to the Platform if any discrepancy, misrepresentation, or fraudulent activity is detected.

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3. Account Registration and Security

Users are required to create an account on the Platform by providing certain personal and contact details. You are responsible for maintaining the confidentiality of your login credentials and for all activities carried out under your account.

The Company shall not be liable for any unauthorized access resulting from your failure to safeguard your credentials. You agree to notify the Company immediately in case of any suspected unauthorized use of your account.

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4. Loan Terms and Transparent Disclosure

Kashly365 is committed to ensuring complete transparency in all financial transactions. Prior to accepting any loan offer, users shall be presented with comprehensive details of the loan.

- Loan amount sanctioned
- Interest rate (expressed as Annual Percentage Rate - APR)
- Processing fees and applicable charges
- Total repayment amount
- EMI amount and repayment schedule
- Late payment charges and penalties
- Foreclosure or prepayment conditions

All such details shall be clearly displayed on the Platform and must be reviewed and accepted by the user before proceeding. The Company adheres to a strict policy of no hidden charges, and any applicable fees shall be disclosed upfront.

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5. User Consent and Data Authorization

By using the Platform, you provide explicit consent for the collection, processing, storage, and sharing of your personal, financial, and technical information. This includes consent for identity verification, credit evaluation, fraud detection, and compliance with regulatory obligations.

You further authorize the Company and its Lending Partners to access your credit information from credit bureaus such as CIBIL and other authorized entities. All data handling shall be carried out in accordance with applicable data protection laws and the Company's Privacy Policy.

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6. KYC and Identity Verification

Users are required to complete Know Your Customer (KYC) verification in accordance with applicable regulatory guidelines. This may include submission and validation of identity proof, address proof, and other relevant documents.

The Company may utilize secure digital verification systems, including document retrieval services such as DigiLocker, to authenticate user information. Failure to complete KYC verification may result in denial or suspension of services.

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7. Loan Disbursement

Upon approval of a loan application, the sanctioned amount shall be disbursed directly by the Lending Partner into the borrower's registered bank account. The Company does not handle or intermediate the flow of funds and shall not be responsible for any delays caused by banking systems or third-party service providers.

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8. Repayment Obligations

The borrower agrees to repay the loan amount along with applicable interest and charges in accordance with the agreed repayment schedule. Users are responsible for ensuring sufficient funds are available in their bank account for timely repayment, including auto-debit mandates where applicable.

In the event of delayed or missed payments, penalties may be applied as per the loan agreement. Persistent default may result in reporting to credit bureaus, which may adversely affect the borrower's credit profile.

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9. Fair Practices and Ethical Conduct

Kashly365 is committed to conducting its operations in a fair, transparent, and ethical manner, in alignment with guidelines issued by the Reserve Bank of India.

The Company ensures that users are provided with accurate information, are not subjected to misleading practices, and are treated with dignity and respect at all times.

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10. Prohibited Activities

Users shall not engage in any activity that is unlawful, fraudulent, or detrimental to the integrity of the Platform. This includes, but is not limited to, submission of false information, impersonation, misuse of services, or attempts to breach system security.

Any such activity may result in immediate suspension or termination of access, along with potential legal action.

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11. Grievance Redressal Mechanism

Kashly365 has established a structured grievance redressal mechanism to address user complaints in a timely and efficient manner. Users may raise concerns through designated support channels, and the Company shall endeavor to resolve such concerns within a reasonable timeframe.

In case a complaint remains unresolved, users may escalate the matter in accordance with applicable regulatory provisions.

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12. Limitation of Liability

The Company shall not be held liable for any direct, indirect, incidental, or consequential damages arising from the use of the Platform. This includes, but is not limited to, loan rejection decisions, delays in disbursement, technical disruptions, or losses resulting from user negligence.

The Platform is provided on an “as-is” and “as-available” basis without warranties of any kind.

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13. Indemnity

You agree to indemnify and hold harmless Kashly365, its directors, employees, and partners from any claims, damages, liabilities, or expenses arising out of your use of the Platform, violation of these Terms, or infringement of any third-party rights.

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14. Suspension and Termination

The Company reserves the right to suspend or terminate access to the Platform at its sole discretion, without prior notice, in cases of suspected fraud, non-compliance, or violation of these Terms.

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15. Amendments to Terms

The Company may revise these Terms from time to time to reflect changes in legal, regulatory, or business requirements. Updated Terms shall be made available on the Platform, and continued use shall constitute acceptance of such changes.

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16. Governing Law and Jurisdiction

These Terms shall be governed by and construed in accordance with the laws of India. Any disputes arising in connection with these Terms shall be subject to the exclusive jurisdiction of competent courts.

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17. Acceptance of Terms

By accessing or using the Platform, you confirm that you have read, understood, and agreed to be bound by these Terms and Conditions.